

24SMCV06304 24SMCV06304

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There is a lot on the calendar today. Putting status conferences aside, the court sees the following: A request by plaintiff to extend the time to file an amended complaint to August 31, 2026, a motion for a preliminary injunction by plaintiff; a demurrer by Lankarani to the complaint; a motion to quash by plaintiff, a demurrer by plaintiff to Cutler's answer; a motion to strike by plaintiff, and an ex parte application for a stay.

The court turns first to the request to extend the time for plaintiff to file the amended complaint to August 31. That is essentially MOOT. It appears that an amended complaint was filed on August 28, 2026.

Next, the court turns to the request for a preliminary injunction. The court reiterates and incorporates its prior comments regarding prior motions for an injunction. Similar logic applies, and the motion is DENIED.

As to the Lankarani demurrer, the court will SUSTAIN THE DEMURRER WITH LEAVE TO AMEND, but not to add a new cause of action. The court agrees that plaintiff needs to be more particular about this particular defendant's alleged misconduct. If plaintiff wants to add new causes of action, he can seek leave of court.

However, in light of the recently amended complaint, the court will inquire as to whether the new complaint essentially moots out the complaint to which Lankarani demurred. If so, then the demurrer will be deemed MOOT, but the court's view remains as to how it would rule if the demurrer is live.

The motion to quash is DENIED. Plaintiff has filed a far-ranging complaint. Given the circumstances, the

subpoena is appropriate. The court is not making a finding concerning the contents of the medical records sought, and the court ORDERS any party obtaining those records to keep those records confidential and not to show them to anyone other than: (1) their client; (2) their counsel and counsel's staff; (3) an expert in the case who agrees to abide by this order; and (4) the court by way of a filing under seal.

The demurrer to Cutler's answer is OVERRULED. The thrust of the argument is that the answer does not provide sufficient facts. An answer to a verified complaint must specifically admit or deny the factual assertions in the complaint, or state a lack of information and deny on that basis. It need not plead affirmative facts. The challenges to the affirmative defenses are essentially that plaintiff believes that they are not available to Cutler because of Cutler's bad conduct. But that is not a basis to demur to an affirmative defense.

The motion to strike is similar, and it is similarly DENIED.

That leaves the ex parte application for a stay. The court will do this. The court will GRANT the application for 30 days and 30 days only on the theory that plaintiff is asserting exclusive federal court jurisdiction and he has filed an action in the federal court. In deference to the federal court, this court will wait 30 days. If, during that time, the federal court issues an order that the state matter be stayed longer—or even a strong suggestion that this court stay the case longer—the court will obey the order or give very serious thought to the suggestion. Plaintiff also states that he has been charged criminally and not given legal counsel. The information that the court has regarding that proceeding is that plaintiff was cited for trespass and refusal to leave. (The court knows this because the information is attached to the ex parte application recently filed.) The court is also aware of the line of authority suggesting that civil cases be stayed where a related criminal matter is pending. That rule is more powerful where the civil litigant is the defendant, who is being involuntarily haled into court and then being forced to respond or face sanctions or a default judgment. Plaintiff here is not being sued; he is the plaintiff. Courts are a bit less protective of parties who bring an action and then seek to stay it because they are also criminal

defendants. That is not to say that the doctrine does not exist even for plaintiffs; it does. It is only to say that the balance is different. The court notes that it has already extended the time for plaintiff to take actions in the case for a significant period for various reasons.

Defendants also have rights. This case, filed more than a year and a half ago, is still in the pleading stages. It needs to move forward. Therefore, absent intervention by the federal court, this case will go forward.

The court is aware of plaintiff's theory that the West District is biased against him. The court will not comment on that other than to disagree. As to this court's current and prior rulings, the court stands by them.

The court will set a new CMC date. The court would ask the defense to coordinate if they are going to demur. It is far easier to have them heard at the same time so that there are not odd scheduling issues or procedural issues where there is a demurrer that is proper when filed but becomes moot. If a demurrer is filed, the court would be inclined to grant an order moving the CMC date to the hearing date on the demurrer. As to the other cases, the court will CONTINUE the conferences in those cases to the new CMC date.